

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: appellant civil docketing statement defining collateral-order scope.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Docketing statement

Officer Rusk's Docketing Statement and Collateral-Order Jurisdiction Statement

Filed January 28, 2026.

This appeal arises from an individual-capacity action under 42 U.S.C. § 1983. Mara Ellison alleges that Officer Nolan Rusk used excessive force during a welfare-check seizure on February 3, 2025. Rusk moved for summary judgment on the Fourth Amendment merits and qualified immunity. The district court denied the motion on January 9, 2026, and Rusk filed his notice seven days later.

The order identifies a genuine dispute about whether Ellison struck Rusk's forearm and reached toward his duty belt or instead only recoiled and pulled from painful wrist control. It separately holds that, accepting Ellison's version, one five-second drive-stun cycle and a forcible takedown violated clearly established law. Rusk appeals the latter legal conclusion and preserves his contention that the objective recordings affect the set of facts properly assumed.

No final judgment has entered. The district court has jurisdiction under 28 U.S.C. § 1331. Rusk invokes 28 U.S.C. § 1291 and the collateral-order doctrine only to the extent governing law permits immediate review of a qualified-immunity denial.

Basis and limits of appellate jurisdiction

A denial of qualified immunity conclusively rejects an immunity from suit, concerns an issue separate from the claim's ultimate merits, and would be effectively unreviewable after trial when the appeal presents a legal question. Rusk therefore asks whether the facts the district court assumed describe a constitutional violation and whether pre-incident precedent placed that answer beyond debate.

Rusk recognizes the jurisdictional limit stated in *Johnson v. Jones*, 515 U.S. 304 (1995). This Court may not use an interlocutory appeal merely to decide whether the summary-judgment record is sufficient for a jury to find particular historical facts. Ellison is expected to argue that any reference to the video obstruction or audio crosses that line. Rusk will separate his legal argument on assumed facts from his narrower submission that *Scott v. Harris*, 550 U.S. 372 (2007), permits a court to disregard a version blatantly contradicted by objective media.

The district court found that no such contradiction exists. Whether an appellate court may revisit that characterization at this stage is itself contested. Rusk's identification of the issue does not ask the Clerk to resolve it. Any portion beyond collateral-order authority may be dismissed without defeating review of the independent legal immunity question.

Questions anticipated for review

First, does the Court possess interlocutory jurisdiction to consider Rusk's submission that the synchronized recordings constrain the factual assumptions, where the critical interval is visually obstructed and the district court found the audio nonconclusive?

Second, accepting that Ellison was unarmed and distressed, pulled from wrist control, but did not strike, grab, flee, reach toward police equipment, or pose an immediate danger, did one five-second drive-stun cycle during a forcible descent violate the Fourth Amendment?

Third, if that force was unreasonable, did decisions existing by February 3, 2025 clearly establish the unlawfulness of a single contact-mode cycle in this physical-control setting?

Rusk does not challenge the initial seizure's lawfulness. He does not seek review of municipal or official-capacity claims omitted from the amended complaint. The district court's finding that a jury could accept either historical account is relevant to the jurisdictional boundary but is not a merits judgment against Rusk.

The desired disposition is reversal on qualified immunity. Alternatively, Rusk seeks resolution of the legal issue within the Court's jurisdiction while leaving disputed facts for proceedings below. Ellison may request dismissal of any evidence-sufficiency component and affirmance of the assumed-facts legal ruling.

Record, related matters, and certifications

The designated record includes the operative pleadings; welfare-call, police, medical, and crisis records; authenticated body-camera transcripts and timing exhibits; fact and expert depositions; the summary-judgment papers; the joint body-camera chart; the January 9 opinion; and the district docket materials. No evidentiary hearing transcript exists for the motion. Native media remain available under the district court's custody protocol.

No related appeal or prior appellate proceeding has been identified. The district action remains pending, and no post-order motion altered the notice deadline. The notice was timely under the ordinary civil appeal period. All parties required for this interlocutory dispute are before the Court.

Counsel certifies that the statement identifies both the requested legal review and the possible jurisdictional obstacle to record-based arguments. Rusk does not represent that docketing converts a factual dispute into an appealable question. He will provide record citations and controlling authority in his brief and will acknowledge the plaintiff-favorable assumptions when addressing the pure legal issue.

Electronic service was completed on counsel for Mara Ellison on January 28, 2026. Respectfully submitted by fictional counsel for appellant Officer Nolan Rusk.